

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JHSIA TONEY and ROGER CLARKE,

SUMMONS

Plaintiffs,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER RYAN BARBA, Shield No. 29699,
and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Plaintiffs designate Kings
County as the place of trial.

Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 28, 2023

Respectfully submitted,



Ellie Silverman, Esq.
Ellie Silverman Law P.C.

Special Counsel to:
Shulman-Hill, PLLC
Attorneys for Plaintiffs
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NEW YORK CITY POLICE OFFICER RYAN BARBA, Shield No. 29699, NYPD 67th Precinct;
2820 Snyder Avenue, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JHSIA TONEY and ROGER CLARKE,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
RYAN BARBA, Shield No. 29699, and NYPD POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs, JHSIA TONEY and ROGER CLARKE, by their attorneys, Shulman-Hill,
PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 5, 2022, at approximately 1:20 a.m., Plaintiffs Jhsia Toney and Roger Clarke, while lawfully at or around Willmohr Street and 95th Street, County of Kings, New York, were subject to an unlawful arrest and detention by defendant Police Officers. Plaintiffs were thereafter subjected to approximately twenty-four (24) hours of unlawful confinement at the NYPD 67th Precinct and Kings County Central Booking. Plaintiffs were thereafter released from custody at Central Booking with no charges, never having seen a judge. Plaintiffs were deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and their constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiffs, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

2. New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b). This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

3. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

4. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs testified at hearings held pursuant to General Municipal Law Section 50-H on June 9, 2023.

5. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

6. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

PARTIES

7. Plaintiff Jhisia Toney is a resident of the State of New York.

8. Plaintiff Roger Clarke is a resident of the State of New York.

9. New York City Police Officer Ryan Barba, Shield No. 29699, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

10. New York City Police Officer Ryan Barba, Shield No. 29699, is being sued in his individual and official capacity.

11. Upon information and belief, New York City Police Officer Ryan Barba, Shield No. 29699, was at all times relevant herein assigned to the NYPD 67th Precinct.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department,

which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. As a result of the wrongful conduct described herein, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior* and/or *Monell* Liability.

STATEMENT OF FACTS

17. On September 5, 2022, at approximately midnight to 1:00 a.m., Plaintiffs were lawfully present in the vicinity of Willmohr Street and 95th Street, County of Kings, New York, when the defendant Police Officers unlawfully arrested Plaintiffs without probable cause or legal justification.

18. At the aforementioned place, Mr. Toney and Mr. Clarke had gathered earlier that evening on or about September 4, 2022 with a small group outside their cousin's apartment listening to music and celebrating the holiday weekend.

19. At or around 11:00 p.m. on September 4, 2022, approximately ten (10) defendant officers exited their vehicles on the block, slammed the doors behind them and immediately began questioning the group about a small satchel bag that was hanging on a nearby fence. Plaintiffs Toney and Clarke had not seen the bag, did not know who owned the bag, did not know what the bag contained, what its contents were and were not near the bag.

20. After the defendant officers arrested the man standing adjacent to the bag, they started walking down the line of the group of people and randomly pointed to different people to arrest, while stating "him too, him too", two of them being the plaintiffs herein.

21. Plaintiffs were subjected to racial profiling, pulled out of their chairs, turned against the fence, subjected to unlawful pat-down searches and tightly restrained with metal handcuffs.

22. Plaintiffs were embarrassed and humiliated in front of close family and friends on a night that signified a special beginning to a holiday weekend that is held very dear in Plaintiffs' culture.

23. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have a reason to accuse or believe Plaintiffs had committed a crime nor were they violating the law in any way.

24. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiffs or from a location that was in Plaintiffs' possession, custody, or control.

25. Plaintiffs did not resist arrest.

26. Defendants did not tell Plaintiffs why they were being arrested.

27. Nevertheless, somewhere between midnight and 1:20 a.m. on September 5, 2022, Plaintiffs were roughly and aggressively grabbed, unlawfully arrested, handcuffed, and subjected to unlawful pat-down search by the defendant officers without legal justification or probable cause.

28. Plaintiff Roger Clarke was arrested so roughly by defendant officers that his iPhone 12 fell out of his pocket, causing severe cracking and damage.

29. Thereafter, Plaintiffs were placed in the back of an NYPD vehicle and transported to the NYPD 67th Precinct.

30. Upon their arrival at the 67th Precinct, Plaintiffs were unlawfully fingerprinted, photographed, and placed in a holding cell; upon information and belief, Plaintiffs were never Mirandized.

31. While at the 67th Precinct, Plaintiffs were questioned by Detectives about the bag and its contents; both Plaintiffs maintained that the bag wasn't theirs and that they knew nothing of its contents.

32. The following day, Plaintiffs were transferred to Central Booking, where they were again processed and detained in a holding cell.

33. While Plaintiffs were in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiffs committed a crime.

34. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiffs were engaged in Criminal Possession of a Weapon, and other related charges.

35. The following morning, on September 6, 2023, both Plaintiffs were released through the back door of Central Booking in Manhattan, never having seen a judge.

36. Upon information and belief, the Kings County District Attorney declined to prosecute the plaintiffs, as neither had committed any crime.

37. As a result of the District Attorney declining prosecution, the Plaintiffs were pulled out of the cell in Central Booking and released out of the backdoor without even seeing a Judge or being assigned a lawyer.

38. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to

prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiffs.

39. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiffs to sustain mental and emotional trauma, missed time from work, humiliation and embarrassment, among other damages.

FIRST CAUSE OF ACTION

Negligence

40. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

41. Defendants owed a duty of care to Plaintiffs.

42. To the extent defendants claim that the injuries to Plaintiffs by the defendant police officers were unintentionally caused and that the force used by the defendants against them was unintentional, then the defendants breached that duty of care by, among other things, seizing and tightly handcuffing them.

43. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

44. All of the foregoing occurred without any fault or provocation by Plaintiffs.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Search

48. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

49. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

50. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

55. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

56. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

57. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

FOURTH CAUSE OF ACTION

False Arrest & False Imprisonment

58. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

59. By the actions described herein, Plaintiffs were caused to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated

Plaintiffs' statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.

60. After being falsely arrested, Plaintiffs were wrongfully confined for somewhere between twenty-four (24) and forty-eight (48) hours.

61. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

62. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

FIFTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights: Assault, Battery & Excessive Force

66. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

67. Defendants committed the common tort of battery and assault via the principle of *respondeat superior*.

68. Defendants committed battery on Plaintiffs while they were under their care and custody.

69. The abuse was harmful, un-consented, and unjustified and in so doing, Defendant, violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.

70. That on the aforementioned time and place, Defendants committed the tort of assault against Plaintiffs by causing them to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendants violated the laws and Constitution of the State

of New York and otherwise violated Plaintiff's rights under New York Law.

71. That by reason of the battery and assault, Plaintiffs were harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiffs were otherwise harmed as a result of the Defendant's actions.

72. That by reason of the aforesaid committed by Defendants, Plaintiffs suffered and continues to suffer.

73. Plaintiffs were subjected to excessive and unnecessary and unreasonable acts of physical force, excessive and unreasonable detention, and to unnecessary and unreasonable and excessive terms and conditions of her detention at the hands of Defendants under the color of state law, in violation of her rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 USC § 1983.

74. The use of excessive force by defendants by, amongst other things, roughly grabbing and tightly handcuffing them, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

77. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

78. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs.

79. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

80. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

84. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

SEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

85. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

86. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

87. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

EIGHTH CAUSE OF ACTION
Failure to Intervene

88. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

89. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

90. Plaintiffs duly relied on the Defendants' fulfillment of their New York City Policing duties.

91. At the time of the incidents described herein, Defendants were observing and aware of the wrongful acts against Plaintiffs.

92. Defendants failed to intervene to prevent the unlawful conduct described herein.

93. As a result of the foregoing, Plaintiffs suffered permanent injury, their liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

94. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

NINTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

98. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

99. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

100. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

101. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

102. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs'

constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

103. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

104. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

105. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

TENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights

107. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

108. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

109. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

110. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately twenty-four (24) hours in total.

111. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

ELEVENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiffs' AC 8-802 Rights

112. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

113. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

114. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

115. The Defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

116. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

117. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured mental and emotional injuries and were otherwise damaged and injured.

118. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

TWELFTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights

126. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

128. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately twenty-four (24) hours in total.

132. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured mental and emotional injuries and were otherwise damaged and injured.

133. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

THIRTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiffs' AC 8-802 Rights

134. The Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

135. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

136. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

137. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

138. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

139. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs' AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

140. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

141. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured mental and emotional injuries and were otherwise damaged and injured.

142. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

FOURTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

119. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

120. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiffs were aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

121. As a direct and proximate result of defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered mental, economic, and emotional injuries, as well as a deprivation of liberty.

122. As a result of the above tortious conduct, Plaintiffs were caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

123. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

124. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

FIFTEENTH CAUSE OF ACTION**Deprivation Of Rights Under The United States Constitution And 42 U.S.C. § 1983**

125. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

126. By their conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

127. As a result of the aforementioned conduct of defendants, with no contributing conduct whatsoever by Plaintiffs, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries and economic damages.

JURY DEMAND

143. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs JHISIA TONEY and ROGER CLARKE demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
November 28, 2023

By: 
Ellie Silverman, Esq.
Ellie Silverman Law P.C.

Special Counsel to:
Shulman-Hill, PLLC
Attorneys for Plaintiffs
1 State Street Plaza, 15th Floor
New York, New York 10004

ATTORNEY VERIFICATION

ELLIE SILVERMAN, ESQ., duly admitted to practice law in the State of New York hereby affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2106 of the CPLR:

Affirming attorney is Principal at Ellie Silverman Law P.C., Special Counsel to Shulman & Hill, PLLC, counsel for the Plaintiffs in the within action;

That I have read the foregoing Summons and Complaint, know its contents, and they are true to my knowledge, except those matters that are alleged on information and belief, and as to those matters I believe them to be true with the source of my information and the grounds for my belief being derived from interviews with the Plaintiffs and from the file maintained in the normal course of business;

That I am familiar with the facts and circumstances surrounding this action and the bases for all matters alleged herein, unless otherwise stated, are an inspection of the record of this case, internal correspondences, independent investigation and research, and other relevant materials;

That I am providing this Verification because the Plaintiffs do not reside within New York County, and/or are not presently in New York County to appear in my office; and

That I affirm on behalf of Plaintiffs that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

Dated: November 28, 2023
New York, New York


Ellie Silverman, Esq.**CERTIFICATION**

Pursuant to 22 NYCRR §130-1.1-a, the undersigned, an attorney duly admitted to practice in the courts of the State of New York, certifies that, upon information and belief, and reasonable inquiry, the contentions contained in the annexed document are not frivolous as defined in subsection (c) of the aforesaid section.

Dated: November 28, 2023
New York, New York


Ellie Silverman, Esq.